

1.

CASE #	CASE NAME	HEARING NAME
CVRI2402839	BARTELS vs REGENTS OF THE UNIVERSITY OF CALIFORNIA	MOTION FOR RECONSIDERATION REGARDING EX PARTE MOTION TO DISMISS WATKINS

Tentative Ruling:

The motion for reconsideration is denied.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2406332	OWENS vs BOMBARDIER RECREATIONAL PRODUCTS INC.	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

The parties do not dispute Plaintiffs are the prevailing party. Under Civil Code section 1794(d), "If the buyer prevails in an action under this section, the buyer *shall* be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been *reasonably incurred* by the buyer in connection with the commencement and prosecution of such action." (Emphasis added.) The federal Magnuson-Moss Warranty Act contains a similar fee-shifting provision. (15 U.S.C. § 2310, subd. (d)(2).) Plaintiffs are entitled to fees under these provisions. The only question to be determined by this motion is the amount of the award to Plaintiffs.

The matter of reasonableness of a party's attorney fees is within the discretion of the trial court. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Fee motions should be based on detailed time records. (*Crespin v. Shewry* (2004) 125 Cal.App.4th 259, 271.) The records should detail crucial information as the types of issues involved, services performed, numbers of hours, billing rates, etc. (*Martino v. Denevi* (1986) 182 Cal.App.3d 553, 559.) The court is then entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel's declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; *see also Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.) In determining the reasonable amount of attorney fees, the court first determines a lodestar figure (time reasonably spent by each biller multiplied by an hourly rate that is reasonable for each biller). (*Serrano v. Priest* (1977) 20 Cal.3d 25, 48.)

Hourly Rates

Plaintiffs seek hourly rates ranging from \$400 to \$700 as follows: Mark Romano for \$700/hour; Timothy Whelan for \$600/hour; Aliaksandra Valitskaya for \$550/hour; and Iraidia Gonzalez for \$400/hour. (Romano Decl., ¶2; Whelan Decl., ¶5; Valitskaya Decl. ¶¶ 12, 17.) A “reasonable” hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) Based on the court’s own experience, the hourly rates requested appear somewhat excessive. (*EnPalm, LLC v. Teitler* (2008) 162 Cal.App.4th 770, 774 [the court may rely on its own experience in determining whether the hourly rate sought or hours spent in the matter are reasonable.]) Plaintiffs provide no evidence they could not secure a local attorney in Riverside County. Defense counsel, in its opposition, proposes hourly rates “no greater than \$600 for Mr. Romano, \$500 for Mr. Whelan, and \$400 for Ms. Valitskaya and Ms. Gonzalez.” These rates are more in line with what Riverside courts typically award in similar lemon law cases.

Reasonable Hours

The starting point for every fee award is calculating an attorney’s services by the time expended on the case. (*Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 815.) Defendant challenges specific time entries. The court declines to exclude work performed after Defendant’s 8/5/25 §998 offer. Plaintiffs reasonably continued discovery while no settlement had been completed. Most challenged entries are reasonable. The involvement of four attorneys does not establish duplication by itself. The record also explains changes in staffing situations. The court nevertheless excludes 0.6 hour from Gonzalez for completing mediation onboarding and confirming communication preferences, as those were administrative/clerical in nature. The court also excludes 2 of the 7 anticipated hours from Valitskaya. The anticipated time had not yet been expended when counsel signed the reply declaration. CCP §1794(d) permits recovery based on *actual* time expended.

Based on a review of the billing records, the Court makes specific reductions to the hours claimed as follows:

Timekeeper	Adjusted Rate	Claimed Hours	Adjusted Hours	Total
Romano	\$600	2.4	2.4	\$1,440
Whelan	\$500	4.1	4.1	\$2,050
Valitskaya	\$400	19.6	17.6	\$7,040
Gonzalez	\$400	17.8	17.2	\$6,880
TOTAL		43.9	41.3	\$17,410

Multiplier

The court declines to apply either a positive or negative multiplier. The purpose of the lodestar enhancement is “to bring financial incentives for attorneys enforcing important

constitutional rights...into line with incentives they have to undertake claims for which they are paid on a fee-for-services basis.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) The party seeking the enhancement has the burden of proof. (*Id.* at 1138.) “[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable.” (*Id.* at 1138.) This was not a complicated case and required no trial preparation, with limited law and motion presented. Accordingly, the court declines to apply a multiplier.

Costs

Civil Code §1794(d) permits the court to award reasonably incurred costs and expenses. The Legislature intended the use of “costs and expenses” to include items excluded under CCP §1033.5. (*Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 137-138; accord *Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 42-43.) Plaintiffs filed a memorandum of costs on 7/15/26. Defendant does not challenge Plaintiffs’ \$3,649.56 in costs and expenses. These costs appear to be reasonably incurred. The court awards that amount.

The court grants in part, denies in part, the motion and awards a lesser amount of \$17,410 in fees and awards the full amount of \$3,649.56 in costs. Moving party is ordered to submit a proposed order consistent with this ruling by no later than August 20, 2026.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2502951	JAFFE vs NUEVO ROAD ANIMAL HOSPITAL VETERINARY CORPORATION	DEMURRER ON 2ND AMENDED COMPLAINT

Tentative Ruling:

The court notes that Plaintiff filed the SAC at issue in this ruling on May 26, 2026, after the court granted Defendants’ motion for judgment on the pleadings, with ten (10) days leave to amend.

To withstand a demurrer the complaint must contain “a statement of the facts constituting the cause of action, in ordinary and concise language.” (C.C.P. § 425.10.) On demurrer the court must assume the truth of all facts properly pled, facts that may be implied or reasonably inferred from the facts expressly alleged, and evidentiary facts that are in exhibits attached to the complaint. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.)